

## 23STCV00230 23STCV00230

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-17

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Case Number: 23STCV00230 Hearing Date: August 17, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Aaron Celious

;

Plaintiffs,

vs.

Susan L. Caldwell

, et al.,

Defendants.

Case No.:

23STCV00230

Hearing Date:

August 17, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for order Establishing Truth of requests for Admissions

MOVING PARTY: Defendant Susan L. Caldwell

RESPONDING

PARTY: No response.

Motion for Order

Establishing Truth of Requests for Admissions

The court considered the moving papers filed in connection with this motion. No opposition was filed.

#### DISCUSSION

Defendant Susan

L. Caldwell ("Defendant") moves the court for an order establishing the truth of matters stated in requests for admissions served on plaintiff Aaron Celious ("Plaintiff").

The court denies

the motion as untimely. The last date

this motion could be heard was Tuesday, January 13, 2026, 15 days before the previous January 28, 2026 trial date. (Code Civ. Proc. § 2024.020 subd. (a); Stipulation entered May 14, 2025 [setting trial and continuing cutoff dates].) To be heard on that date with proper statutory notice, Defendant would have had to file and serve this motion no later than December 18, 2025. (Code Civ. Proc., § 1005, subd. (b).) Moreover, the court's continuance of trial at the January 15, 2026 Final Status Conference did not reopen discovery or extend the discovery motion cutoff date. (Minute Order entered January 15, 2026.) Defendant's motion is beyond the discovery motion cutoff and must be denied.

ORDER

The court DENIES  
defendant Susan L. Caldwell's Motion for Order Establishing the Truth of  
Admissions.

The court orders defendant  
Susan L. Caldwell to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 17, 2026

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Robert B. Broadbelt III

Judge of the Superior Court